

VCL328613 Cavalry SPV I LLC vs. Tafolla, Nayeli Acevedo

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-20

Motion: Motion for Judgment on the Pleadings

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Re: Cavalry SPV I LLC vs. Tafolla, Nayeli Acevedo

Case No.: VCL328613

Date: August 20, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion for Judgment on the Pleadings

Tentative Ruling: To deny the motion

Facts and Analysis

In this matter, Plaintiff sues for breach of contract as to Defendants Nayeli Acevedo Tafolla and Mauro Tovar.

On January 5, 2026, Defendant Tafolla filed an answer on a Judicial Council Form.

As to No. 3, which states "Check ONLY ONE of the next two boxes: a. ☐ Defendant generally denies each statement of the complaint or cross-complaint. (Do not check this box if ~ the verified complaint or cross-complaint demands more than \$1,000,) b. ☐ Defendant admits that all of the statements of the complaint or cross-complaint are true EXCEPT: (1) Defendant claims the following statements are false (use paragraph numbers or explain)," Defendant Tafolla checked neither box.

The Court notes no answer by Defendant Tovar.

On July 7, 2026, Plaintiff moved for judgment on the pleadings as to both Defendants, arguing that the answer does not state facts sufficient to constitute a defense to the complaint.

Authority and Analysis

A motion for judgment on the pleadings (MJOP) is used to challenge a pleading in the same manner as a general demurrer, i.e., the challenged pleading (1) establishes that the court does not have subject matter jurisdiction or (2) does not allege facts sufficient to support a cause of action or defense.(Code Civ. Proc. § 438(c)(1); *International Assn. of Firefighters v. City of San Jose* (2011) 195 Cal.App.4th 1179,1196.) Like a demurrer, the grounds for the motion must appear on the face of the pleading or be based on facts capable of judicial notice, including court records. (*Stencel Aero Engineering Corp. v. Superior Court* (1976) 56 Cal.App.3d 978, 986, and fn. 6.)

A motion for judgment on the pleadings may be based upon “matters properly the subject to judicial notice.” *Saltarelli & Steponovich v. Douglas* (1995) 50 Cal.App.4th 1, 5. Judicial notice may be taken “of a party’s admissions or concessions, but only in cases where the admissions “cannot reasonably be controverted,” such as in answer to interrogatories or request for admissions, or in affidavits and declaration filed on the party’s behalf.” (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485.)

To start, Defendant Tovar has not responded to the complaint and therefore the Court cannot grant motion for judgment on the pleadings in favor of Plaintiff.

As to Defendant Tafolla’s answer, the failure to check either box renders the answer legally insufficient, but cannot be said to be an admission or response that cannot be reasonably controverted. Defendant Tafolla neither admits nor denies the allegations. As such, there is no basis to grant the motion for judgment on the pleadings.

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.